

Tentative Rulings for August 11, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 502

Begin at the next page

(03)

Tentative Ruling

Re: **Hill v. Nuser**
Case No. 24CECG01381

Hearing Date: August 11, 2026 (Dept. 502)

Motion: Plaintiff's Four Motions to Compel Initial and Further Responses to Discovery Requests, and for Monetary Sanctions

Tentative Ruling:

To grant plaintiff's motion to compel defendant to provide initial responses to the requests for production of documents, set one, served on January 30, 2025. (Code Civ. Proc., § 2031.300.) To grant sanctions against defendant in the amount of \$960. (*Ibid.*) Defendant shall serve verified responses without objections within ten days of the date of service of this order. Defendant shall pay monetary sanctions within 30 days of the date of service of this order.

To continue plaintiff's motions to compel further responses to requests for production, set two, special interrogatories, set two, and requests for admissions, set one, to Tuesday, October 13, 2026 at 3:30 p.m. in Department 502. To order the parties to engage in additional good faith meet and confer efforts regarding the issues raised by the disputed responses in person, by phone, or by videoconference. (Code Civ. Proc., §§ 2016.040; 2030.300; 2031.310; 2033.290.) Plaintiff's counsel shall serve and file a supplemental declaration regarding the results of the meet and confer efforts and what responses, if any, remain in dispute by the close of business on October 5, 2026.

Explanation:

Motion to Compel Initial Responses to Requests for Production of Documents, Set One: Plaintiff has met its burden of showing that defendant failed to serve any responses to the requests for production, set one, on plaintiff's current counsel, so an order compelling initial responses is proper. (Code Civ. Proc., § 2031.300, subds. (a), (b).) Plaintiff served the requests for production of documents on January 30, 2025. However, defendant never served responses on plaintiff's current counsel. Thus, plaintiff is entitled to an order compelling defendant to provide verified responses without objections to the requests.

Defendant claims that it served responses to the requests in a timely manner on October 31, 2025, more than four months before plaintiff filed his motion to compel, and therefore the motion is without merit and should be denied. However, the evidence shows that defendant served the responses on plaintiff's *former* attorney, Jasminder Gill. (See Brumfiel decl., Exhibit A, Proof of Service to Responses to Request for Production of Documents, Set One.) Mr. Gill substituted out of the representation and Franz Reece substituted in on August 21, 2025, about two months before defendant served its responses. (See Substitution of Attorney filed on August 21, 2025.) Plaintiff's current counsel denies that he ever received the responses. (Kwak decl., ¶ 5.)

Thus, defendant's service of the responses on plaintiff's former attorney was ineffective to comply with its discovery obligations, and it is subject to an order compelling it to respond. Furthermore, since defendant failed to timely respond to the requests, it has waived the right to object to the requests. (Code Civ. Proc., § 2031.300, subd. (a).) Therefore, the court intends to order defendant to serve verified responses to the requests for production, set one, without objections.

Finally, the court intends to order defendant to pay sanctions to plaintiff for its unjustified failure to timely respond to the requests. (Code Civ. Proc., § 2031.300, subd. (c).) Plaintiff seeks \$1,860 in sanctions based on four hours of attorney time billed at \$450 per hour, plus \$60 in filing fees. (Kwak decl., ¶ 8.) The requested amount is excessive in light of the relatively simple nature of the motion, however. Therefore, the court will award sanctions of \$900 based on two hours of attorney time billed at \$450 per hour, plus \$60 in filing fees, for a total of \$960.

Motions to Compel Further Responses to Discovery: Under Code of Civil Procedure section 2030.300, subdivision (b)(1), "A motion [to compel further responses to interrogatories] under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." Motions to compel further responses to requests for production of documents and requests for admissions must also include a meet and confer declaration. (Code Civ. Proc., §§ 2031.310, subd. (b)(2); 2033.290, subd. (b)(1).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

"[A] determination of this kind (reasonability and good faith) almost inherently involves the court in considering issues of a factual nature." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 430.) "A determination of whether an attempt at informal resolution is adequate also involves the exercise of discretion. The level of effort at informal resolution which satisfies the 'reasonable and good faith attempt' standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant." (*Id.* at p. 431.)

Here, plaintiff's counsel sent meet and confer letters regarding the disputed responses to defense counsel on December 17, 2025, about six weeks after he received the responses. (Kwak decl., ¶¶ 8, 9, and Exhibit A thereto.) The parties then exchanged numerous emails and engaged in phone conversations about the discovery dispute over the next two months. (Exhibit A to Kwak decl.) They also agreed to extend the deadline to bring motions to compel until March 10, 2026. (*Id.* at ¶ 10.) Their last email exchange was on February 23 and 24, 2026. (Exhibit A, emails dated February 23 and 24, 2026.)

However, there is no evidence that the parties actually discussed the substance of their disputes at any time by phone, in person, or by videoconference. Plaintiff's counsel claims that the parties discussed their disputes by email and phone, but he does not describe any phone conversation where they actually engaged in a substantive discussion of the issues raised in the motions to compel at any time. Most of the emails

exchanged by the parties simply discussed logistical matters, such as when they could have a phone discussion about the dispute. There is nothing in counsel's declarations that shows that a phone conference actually took place that resulted in a good faith discussion of the issues. The last email was simply an inquiry from plaintiff's counsel, asking when the parties could have a discussion of the issues. (Exhibit A to Kwak decl., email dated February 23, 2026.) Defense counsel responded "my associate was supposed to send a letter yesterday – you did not receive?" (*Id.*, email dated February 24, 2026.) There is no evidence of any discussions after the last email exchange.

Plaintiff filed his request for a pretrial discovery conference on February 2, 2026, which was denied by the court on February 20, 2026. Plaintiff filed his motions to compel further responses on March 5, 2026.

Thus, plaintiff's counsel has not shown that he made a full good faith effort to meet and confer on the disputed requests before filing his motions. It appears that counsel prematurely filed the motions to compel without actually meeting and conferring in person, by phone, or by videoconference. Simply exchanging emails and having discussions about scheduling a meet and confer discussion without actually engaging in a substantive discussion of the issues is not enough to show a good faith effort to meet and confer. Counsel must actually meet in person, by phone, or by videoconference and make a serious, good faith effort to resolve their disputes. (Code Civ. Proc., § 2016.040.)

Therefore, the court will not hear the merits of the motions to compel further responses at this time, as the plaintiff has not shown that he engaged in a good faith effort to meet and confer on the issues raised by the responses. Instead, the court intends to continue the matter and order the parties to engage in further efforts to meet and confer in person, by phone, or by videoconference. The court will also order plaintiff's counsel to file a supplemental declaration before the hearing regarding the results of the discussions, and what responses, if any, remain at issue. At the continued hearing, the court will rule on the responses that remain in dispute, if any.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 8-10-26 .

(Judge's initials)

(Date)

(49)

Tentative Ruling

Re: ***Insurance Company of the West v. Marquez et al.***
Superior Court Case No. 26CECG00882

Hearing Date: August 11, 2026 (Dept. 502)

Motion: By Richard Venegas to File Complaint-In-Intervention

Tentative Ruling:

To grant. (Code Civ. Proc., § 387, subd. (d)(1).)

Explanation:

Plaintiff-in-Intervention Richard Venegas ("Venegas") moves for leave to file complaint-in-intervention under Code of Civil Procedure section 387, subdivision (d)(1), and Labor Code section 3853.

Code of Civil Procedure section 387, subdivision (d)(1), states in pertinent part, "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if...[a] provision of law confers an unconditional right to intervene." Labor Code section 3850 states in pertinent part, "As used in this chapter... 'Employer' includes insurer". Labor Code section 3853 states in pertinent part, "If the action is brought by either the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently."

The current case arises from an incident involving Venegas upon which Venegas filed a worker's compensation claim. (Kreit Decl., ¶¶ 2-3.) Insurance Company of the West ("West") paid out benefits to Venegas. (*Id.*, ¶ 3.) West is Venegas's Employer's Insurance. Therefore, West meets the definition of Employer for purposes of Labor Code section 3853. Labor Code section 3853 provides a statutory basis for Venegas to intervene. Accordingly, Venegas's motion for leave to file complaint-in-intervention is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-10-26
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Ruben Ramos v. ASFC, LLC**
Superior Court Case No. 25CECG02842

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant to Compel Arbitration

Tentative Ruling:

To grant defendant ASFC, LLC's motion to compel arbitration of plaintiff Ruben Ramos's claims, and stay plaintiff's court action pending the arbitration of his claims.

Explanation:

Legal Standard

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

A Valid Arbitration Agreement Exists

The moving party has the burden of proving the existence of a valid arbitration agreement. (*Pinnacle Museum Tower Assn v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.)

Here, Defendant provided a copy of the arbitration agreement at issue. (Blair Decl., ¶ 3, Exh. A.) The agreement is authenticated by Yvonne Castellanos, the Admissions Coordinator for Defendant ASFC, LLC. (Castellanos Decl., ¶¶ 3, 8.) The agreement was signed by Ms. Castellanos and Plaintiff on June 5 and 6, 2023, respectively. (Blair Decl., ¶ 3, Exh. A.) Plaintiff in his opposition¹ does not dispute that he signed the agreement, or otherwise challenge its authenticity. As such, Defendant has met its burden to prove the existence of a valid arbitration agreement by a

¹ Any defect due to untimeliness in the service of the opposition is waived, as Defendant replied on the merits of the opposition. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7.)

preponderance of the evidence, and the burden shifts to Plaintiff to demonstrate the agreement is unenforceable.

The Arbitration Agreement is Enforceable

Plaintiff argues that the arbitration agreement is statutorily barred pursuant to Civil Code section 1953, and that it is unenforceable as unconscionable.

Civil Code section 1953 and *Harris v. University Village Thousand Oaks, CCRC, LLC*

Plaintiff construes the subject arbitration agreement as part of his agreement for “long term living care,” analogous to the continuing care agreements in *Harris v. University Village Thousand Oaks, CCRC, LLC* (2020) 49 Cal.App.5th 847 (*Harris*) which were held to be protected by the prohibitory provisions of Civil Code section 1953. However, the aggrieved residents in *Harris* “lived in independent living units and not the adjacent assisted living units[]” (*Id.* at p. 854) and their causes of action addressed conditions attendant to tenancy rather than the providing of services. (*Id.* at p. 852 [the residents alleged “false representations regarding facility security, the amount of future increases in monthly fees, and whether monthly fees included the cost to charge electric vehicles.”].) In other words, the Second District looked to the residents' right to live in their units (i.e. the unsatisfactory lodging and tenancy features which dominated the dispute) to find protection under section 1953. (*Id.* at p. 856.)

Unlike the residents' causes of action in *Harris*, each cause of action here is framed around aspects of Defendant's alleged negligence rather than underperforming features of tenancy. Plaintiff's allegations do not include violations of his rights as a tenant. Instead, they pertain to personal injuries he allegedly sustained due to his fall at the skilled nursing facility. Furthermore, Plaintiff provides no actual evidence establishing that Plaintiff was a resident or tenant of the facility in order to render the *Harris* holding applicable. Plaintiff makes vague statements such as “the primary purpose of Plaintiff staying at the Defendant's facility was long term living care” but offers no evidentiary support. Plaintiff only provides a declaration by his counsel, which is no more than hearsay. The holding in *Harris* is inapplicable to the present matter.

Unconscionability

Plaintiff argues that the arbitration agreement is unconscionable. If the court finds as a matter of law that a contract or any portion of it was unconscionable at the time it was made, the court may refuse to enforce it, or may enforce the contract without the unconscionable provisions, or limit their application to avoid any unconscionable result. (Civ. Code, § 1670.5, subd. (a).) There are two prongs considered in this analysis: procedural unconscionability and substantive unconscionability. Both must be present for a court to exercise its discretion to refuse to enforce an arbitration agreement under the doctrine of unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) They need not be present in equal amounts; essentially a sliding scale is used, and where there is substantive unconscionability, less procedural unconscionable need be shown. (*Id.* at pp. 113-114.)

Plaintiff makes a scant argument that “[i]t is procedurally unconscionable to force a patient who was transferred to a facility to sign an Arbitration Agreement as a condition of residency when care had already been rendered beforehand.” (Opp., 4:16-17.) Plaintiff offers no authority to support this position, and again, Plaintiff fails to support this position with any evidence. Further, it does not appear that Plaintiff was “forced” to sign the agreement. The agreement itself makes it clear that “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility. [...] [T]his document is not part of the admission agreement.” (Blair Decl., Exh. A.) The agreement additionally provides that it may be “rescinded by written notice within thirty (30) days of signature.” (*Ibid.*) These factors do not lend themselves to a finding of procedural unconscionability.

Plaintiff's arguments for substantive unconscionability are that Plaintiff was offered no opportunity for legal representation to review the contract, Plaintiff was not afforded any time to review the agreement prior to the care received or his transfer to the facility, and the agreement seeks to contract away the rights mandated by public policy (see *Harris* discussion above). Again, Plaintiff provides no evidence in support of any of these claims, as the only declaration of Plaintiff's counsel is mere hearsay. Aside from no proof that Plaintiff was not afforded the opportunity to review the agreement at the time it was signed, the 30-day "grace period" allowing for rescission of the agreement belies the position that Plaintiff had no opportunity to either review the agreement or have legal counsel review it. Thus, the Plaintiff's unconscionability arguments fail.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-11-26
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Mundo, et al. v. Lion Farms LLC, et al.***
Superior Court Case No. 25CECG00799

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant Ruben Ojeda Chino to Strike Portions of the
Operative Complaint

Tentative Ruling:

To grant the motion to strike the punitive damages as to the wrongful death heirs only, without leave to amend. To deny the motion to strike, without prejudice, as to the remaining relief sought. (Code Civ. Proc., § 436.)

Explanation:

A motion to strike can be used to cut out any irrelevant, false or improper matters or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 436.) A motion to strike is the proper procedure to challenge an improper request for relief, or improper remedy, within a complaint. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-167.)

Defendant Ruben Ojeda Chino (hereinafter, "defendant") moves to strike the cause of action for negligence and the prayer for punitive damages in the operative complaint, the Fourth Amended Complaint ("4AC").²

First Cause of Action – Negligence

Defendant argues that the 4AC fails to comply with California Rules of Court Rule 2.112, because it does not distinguish which causes of action are asserted by which plaintiffs. Particularly, defendant takes issue with the fact that all causes of action in the 4AC are labelled as wrongful death causes of action, despite the fact that plaintiff Benito Perez Mundo is not deceased.

"[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. [Citation.] A motion for judgment on pleadings is made on the same grounds and decided on the same basis as a general demurrer; judgment on the pleadings will be granted if the complaint on its face fails to state a cause of action. [Citation.]" (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) Accordingly, a motion to strike on grounds for general demurrer may be treated by the court as a motion for judgment on the pleadings. In the

² The court notes that this motion was filed prior to the filing of the 4AC, and that the parties have stipulated to deem the motion as filed against the 4AC.

interest of judicial economy, instead of denying the motion to strike the first cause of action outright, the court will treat this portion of the motion as a judgment on the pleadings.

Where the complaint contains sufficient facts to apprise defendant of the issues, the failure to label each cause of action is not ground for attacking the pleading. (*Williams v. Beechnut Nutrition Corp.* 185 Cal.App.3d 135, 139 ["Although inconvenient, annoying and inconsiderate, the lack of labels . . . does not substantially impair [defendant's] ability to understand the complaint"; see also *Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908 ["Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief"].)

Given the specificity of the facts alleged in the 4AC, the lack of a cause of action specifically labelled as "non-wrongful death" negligence asserted by plaintiff Mundo is nonconsequential. Therefore, the motion as to the first cause of action is denied.

Punitive Damages

Defendant contends that heirs are not entitled to punitive damages in a wrongful death action as a matter of law. Defendant further argues that plaintiff Mundo has not pled sufficient allegations to support a prayer for punitive damages, and the third party motorist's intervening negligence breaks the chain of causation to support punitive damages.

- Wrongful Death Heirs

Plaintiffs concede that punitive damages are prohibited in wrongful death actions, and ask the court to strike the prayer for punitive damages as to the wrongful defendants only. Accordingly, the court intends to grant the motion to strike the punitive damages as to the wrongful death heirs only.

- Allegations in Support of Punitive Damage Claim

With respect to punitive damage allegations, mere legal conclusions of oppression, fraud or malice are insufficient (and hence improper) and therefore may be stricken. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29-30.)

To support punitive damages, the complaint must allege ultimate facts of the defendant's oppression, fraud, or malice. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Evidentiary facts are not required. "[A]bsent an intent to injure the plaintiff, 'malice' requires more than a willful and conscious disregard of the plaintiff's interests. The additional component of 'despicable conduct' must be found." (*College Hosp. Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) "Despicable" conduct is defined as "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Ibid.*) Such conduct has been described as "having the character of outrage frequently associated with crime." (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287; *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912.)

A claim may be supported by showing “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) To establish conscious disregard, “the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 908, italics omitted.)

Here, plaintiffs allege that the collision giving rise to the instant action occurred on February 23, 2024, when plaintiff Mundo and decedents were hit by a third-party motorist on their way to work. (4AC, ¶¶ 26, 27.) It is alleged that plaintiff Mundo and decedents were driving from a labor camp in Kerman, CA, owned by defendant Lion Farms LLC, which is approximately 40 miles away from their place of work in Madera, CA. (*Ibid.*) It is further alleged that defendant purchased vans for the purpose of transporting workers to the place of work and charged the workers a daily fee of approximately \$13 for this transportation service. (4AC, ¶¶ 20, 24.) Plaintiffs allege that on February 23, 2024, defendant instructed decedent Victor Cirilo Hernandez to drive himself, plaintiff Mundo, and the other decedents to work, with the knowledge that Mr. Hernandez did not have a valid driver’s license and was untrained and unqualified to operate the vehicle. (4AC, ¶ 26.)

There is a commonly understood risk which attends every motor vehicle driver who is unlicensed or otherwise untrained or unqualified to operate a vehicle. The lethal consequence of directing an unlicensed individual to drive a vehicle capable of great force and speed, as is alleged, is widely known and indisputable. Moreover, plaintiffs have sufficiently alleged that defendant’s conduct was intentional and that he had actual knowledge of the probable dangerous consequences. Plaintiffs allege: that defendant had “direct knowledge of the dangerous . . . circumstances of the transportation . . . arranged . . . in his supervisory capacity and role in procuring and transporting labor to work for defendant Lion Farms.” (4AC, ¶¶ 38.) “Defendant Chino was aware that he was providing dangerous transportation to employees, and he knew the risks associated with the unlawful transportation given his intimate knowledge of the unqualified and unlicensed nature of the drivers. . .” (4AC, ¶ 52.) This alleged knowledge is further supported by the allegations that defendant intentionally registered the vehicles under false names in an effort to avoid liability. (4AC, ¶ 21.)

While plaintiffs will ultimately need to prove their allegations of malice by clear and convincing evidence of despicable conduct, at the pleading stage it is sufficient to allege that defendant acted with conscious disregard for the rights and safety of others by willfully instructing an unlicensed driver to operate a vehicle with multiple passengers for a distance of approximately 40 miles with the knowledge that such conduct posed an unreasonable danger.

- Causation

Next, defendant argues that plaintiff Mundo cannot state a claim for punitive damages, because defendant’s alleged conduct did not cause plaintiffs’ injuries. Firstly, the issue of causation is generally not appropriate at the pleading stage. Nonetheless, defendant’s argument that his alleged conduct had no effect on the outcome of this accident, at least as it is alleged, is patently false. Defendant is correct in his assertion

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Tentative Ruling

Re: **Corral v. Webull Financial**
Superior Court Case No. 24CECG01122

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant for Judgment on the Pleadings

Tentative Ruling:

To grant the motion for judgment on the pleadings, without leave to amend. (Code Civ. Proc. § 438.) The prevailing party is directed to submit to this court, within 7 days of service of the minute order, a proposed judgment dismissing the action.

Oral argument on this matter is continued to September 17, 2026, at 3:30 in Dept. 502 so that the plaintiff may be present for oral argument via Zoom.

Explanation:

Plaintiff Michael Corral filed the Second Amended complaint on December 9, 2025³ using a Judicial Council form complaint. In paragraph 10 plaintiff indicates that he alleges a single "Other" cause of action for "Failure to transfer 1,000,000 from Webull Financial Bank to Wells Fargo Bank"

Use of the Judicial Council form complaint requires the use of attachments for alleging the causes of action. Paragraph 10 of the form pleading states, "[t]he following causes of action are attached and the statements above apply to each **(each complaint must have one or more causes of action attached)**: ..." (Emphasis added.) The plaintiff is to check the boxes indicating the causes of action being alleged (or specify others in the "other" section), and add to the form complaint attachments alleging the elements and facts pertinent to each cause of action. Having failed to include any cause of action attachments, the complaint fails to state facts sufficient to state any cause of action.

The Amended Complaint includes handwritten allegations making reference to attached exhibits to prior pleadings and alleging a bank manager was served with a subpoena duces tecum for banks statements with "verified mirco (b) deposits verifying 1,000,000 Being transferred From verified Webull Financial Bank Account and verified \$100,000 line of credit." (SAC, ¶ 9.a.)

The court is not inclined to refer to prior pleadings in allowing a plaintiff to state a cause of action. "'It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.'" (*Foreman & Clark*

³ Counsel for defendant, Alexis King attests to not having been served with the Second Amended Complaint that is the subject of this motion. (King Decl., ¶ 11.) Plaintiff must serve any amended pleadings on all parties having appeared in the action.

Corp. v. Fallon (1971) 3 Cal.3d 875, 884, citations omitted.) However, as was discussed in the court's ruling on defendant's prior motion for judgment on the pleadings, the exhibits attached fail to support the existence of a cause of action. The exhibits attached to the prior Amended Complaint appear to be pages from a notary register. Plaintiffs may attach a copy of a document to the complaint and incorporate it by reference. By so doing, the documents become part of the complaint as if set forth verbatim therein. Thus, the contents of the exhibit may supply the ultimate facts required to state the cause of action. (*Del Mar Beach Club Owners Assn., Inc. v. Imperial Contracting Co., Inc.* (1981) 123 Cal.App.3d 898, 908.) Although there are documents attached to the Amended Complaint, none of them are incorporated by reference. In any case, none of the documents include facts that would constitute a cause of action for "failure to transfer."

The cause of action for "failure to transfer" is uncertain as to what is alleged to constitute this cause of action. The Second Amended Complaint states the conclusion that Webull Financial failed to make a transfer of funds but alleges neither the basis for any duty to do so nor a violation of a contract for the transfer. It is unclear whether the cause of action is based on a contractual relationship based on plaintiff being a customer of defendant or a second cause of action based in negligence.

Accordingly, the motion for judgment on the pleadings is granted.

"If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) "The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended." (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742; see also *McClintock v. West*, *supra*, 219 Cal.App.4th at p. 556 [demurrer properly sustained without leave to amend where plaintiff did not argue that leave to amend was warranted].)

Here, plaintiff has had the opportunity to amend the complaint to plead a cause of action and the defects present in the previous pleadings remain. As a result, the court will not grant leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 8-10-26.
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: ***In re: Julieta Tapia Avila***
Superior Court Case no. 26CU02128

Hearing Date: August 11, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders.

Explanation:

The documentation required by item 6 has not been provided. Also, item 4 indicates Medi-Cal has agreed to reduce its lien, however no documentation of this has been provided. Last, petitioner did not sign the petition.

For the reasons set forth above, the petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-10-26
(Judge's initials) (Date)